

STATE OF NEW YORK

9479--A

IN SENATE

March 17, 2026

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to the definition of tidal wetlands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Paragraph (a) of subdivision 1 of section 25-0103 of the
- 2 environmental conservation law, as added by chapter 790 of the laws of
- 3 1973, is amended to read as follows:
- 4 (a) those areas which border on or lie beneath tidal waters of the
- 5 marine and coastal district, as described in section 13-0103 of this
- 6 chapter, such as, but not limited to, banks, bogs, salt marsh, swamps,
- 7 meadows, flats or other low lands subject to tidal action, including
- 8 those areas now or formerly connected to tidal waters;
- 9 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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